2012 SEP 25 AM 9:15

Bernard J. Youngblood
Wayne County Register of Deeds
September 25, 2012 09:14 AM
Inst:2012383557 ASG Pages:22
Liber:50146 Page:1291

BUTCHKISS VAN BUREN, LLC,
JB VAN BUREN, LLC,
LT VAN BUREN, LLC,
SB VAN BUREN, LLC,

and

VAN BUREN VENTURE, LLC,
tenants-in common, collectively, as assignor
(collectively, Borrower)

to

GUGGENHEIM LIFE AND ANNUITY COMPANY, as assignee
(Lender)

ASSIGNMENT OF LEASES AND RENTS

Dated: As of September 20, 2012

Location: 9059 Samuel Barton Drive & 40000 Ricardo Drive, Van Buren Township
County: Wayne
State: Michigan

82-122563 13-SCM

③

22/78

ASSIGNMENT OF LEASES AND RENTS

THIS ASSIGNMENT OF LEASES AND RENTS (this "**Assignment**") made as of this 20th day of September, 2012, by **BUTCHKISS VAN BUREN, LLC**, a Delaware limited liability company, having its principal place of business at c/o Sandi Beth Butchkiss, 701 Pearl Street, #2, Boulder, Colorado 80302 ("**BK**"), **JB VAN BUREN, LLC**, a Delaware limited liability company, having its principal place of business at c/o Jean Becker, 616 Aldine Avenue, Chicago, Illinois 60657 ("**JB**"), **LT VAN BUREN, LLC**, a Delaware limited liability company, having its principal place of business at c/o LDB Holding Company LLC, 653 North Kingsbury, #803, Chicago IL 60654 ("**LT**"), **SB VAN BUREN, LLC**, a Delaware limited liability company, having its principal place of business at c/o Sidney Becker, 616 Aldine Avenue, Chicago, Illinois 60657 ("**SB**"), and **VAN BUREN VENTURE, LLC**, a Delaware limited liability company, having its principal place of business at c/o Bradley Associates Limited Partnership, 111 East Wacker Drive, Suite 900, Chicago, Illinois 60601 ("**VBV**"), tenants-in-common, collectively, as assignor, jointly and severally (BK, JB, LT, SB and VBV, together with their respective permitted successors and assigns, collectively, "**Borrower**"), to **GUGGENHEIM LIFE AND ANNUITY COMPANY**, a Delaware life insurance company, having an address at 401 Pennsylvania Parkway, Suite 300, Indianapolis, Indiana 46280, as assignee (together with its successors and assigns, "**Lender**").

WITNESSETH:

WHEREAS, this Assignment is given in connection with a loan in the principal sum of Thirteen Million Nine Hundred Thousand and No/100 Dollars ($13,900,000.00) (the "**Loan**") made by Lender to Borrower pursuant to that certain Loan Agreement, dated as of the date hereof (as the same may be amended, restated, replaced, supplemented or otherwise modified from time to time, the "**Loan Agreement**") and evidenced by that certain Promissory Note, dated the date hereof, given by Borrower to Lender (as the same may be amended, restated, replaced, supplemented or otherwise modified from time to time, the "**Note**");

WHEREAS, Borrower desires to secure the payment of the Debt and the performance of all of its obligations under the Note, the Loan Agreement and the other Loan Documents; and

WHEREAS, this Assignment is given pursuant to the Loan Agreement, and payment, fulfillment, and performance by Borrower of its obligations thereunder and under the other Loan Documents is secured hereby, and each and every term and provision of the Loan Agreement and the Note, including the rights, remedies, obligations, covenants, conditions, agreements, indemnities, representations and warranties therein, are hereby incorporated by reference herein as though set forth in full and shall be considered a part of this Assignment.

NOW THEREFORE, in consideration of the making of the Loan by Lender and the covenants, agreements, representations and warranties set forth in this Assignment:

ARTICLE 1 - ASSIGNMENT

Section 1.1 **Property Assigned**. Pursuant to Act No. 210 of the Michigan Public Acts of 1953, as amended (MCLA 554.231, *et seq.*), Borrower hereby absolutely and unconditionally assigns and grants to Lender the following property, rights, interests and estates, now owned, or hereafter acquired by Borrower:

(a) Leases. All leases, subleases, subsubleases, licenses, franchises, concessions or grants of other possessory interests, tenancies, and any other agreements (in each case whether oral or written) affecting the use, possession or occupancy of any space in that certain lot or piece of land, more particularly described in Exhibit A annexed hereto and made a part hereof, together with the buildings, structures, fixtures, additions, enlargements, extensions, modifications, repairs, replacements and improvements now or hereafter located thereon (collectively, the "**Property**") or any part thereof (including, without limitation, guest rooms, restaurants, bars, conference and meeting rooms, and banquet halls and other public facilities), whether now or hereafter existing or entered into (including, without limitation, any use or occupancy arrangements created pursuant to Section 365(d) of the Bankruptcy Code (defined below) or otherwise in connection with the commencement or continuance of any bankruptcy, reorganization, arrangement, insolvency, dissolution, receivership or similar proceedings, or any assignment for the benefit of creditors, in respect of any tenant or occupant of any portion of the Property) and every modification, amendment or other agreement relating to the foregoing and every guarantee of the performance and observance of the covenants, conditions and agreements to be performed and observed by the other party thereto, and the right, title and interest of Borrower, its successors and assigns, therein and thereunder.

(b) Other Leases and Agreements. All other leases and other agreements, whether or not in writing, affecting the use, enjoyment or occupancy of the Property or any portion thereof now or hereafter made, whether made before or after the filing by or against Borrower of any petition for relief under 11 U.S.C. §101 et seq., as the same may be amended from time to time (the "**Bankruptcy Code**") together with any extension, renewal or replacement of the same, this Assignment of other present and future leases and present and future agreements being effective without further or supplemental assignment. The "leases" described in Subsection 1.1(a) and the leases and other agreements described in this Subsection 1.1(b) are collectively referred to as the "**Leases**".

(c) Rents. All rents, issues, profits, royalties (including all oil and gas or other hydrocarbon substances), earnings, receipts, revenues, accounts, account receivable, security deposits and other deposits (subject to the prior right of the tenants making such deposits) and income, including, without limitation, fixed, additional and percentage rents, and all operating expense reimbursements, reimbursements for increases in taxes, sums paid by tenants to Borrower to reimburse Borrower for amounts originally paid or to be paid by Borrower or Borrower's agents or affiliates for which such tenants were liable, such as, for example, tenant improvements costs in excess of any work letter, lease takeover costs, moving expenses and tax and operating expense pass-throughs for which a tenant is solely liable, parking, maintenance, common area, tax, insurance, utility and service charges and contributions, proceeds of sale of electricity, gas, heating, air-conditioning and other utilities and services, deficiency rents and liquidated damages, and other benefits now or hereafter derived from any portion of the Property or otherwise due and payable or to become due and payable as a result of any ownership, use, possession, occupancy or operation thereof and/or services rendered, goods provided and business conducted in connection therewith (including any payments received pursuant to Section 502(b) of the Bankruptcy Code or otherwise in arrangement, insolvency, dissolution, receivership or similar proceedings, or any assignment for the benefit of creditors, in respect of any tenant or other occupants of any portion of the Property and all claims as a creditor in connection with any of the foregoing) and all cash or security deposits, advance rentals, and all deposits or payments of a similar nature relating thereto, now or hereafter, including during any period of redemption, derived from the Property or any portion thereof and all proceeds from the cancellation, surrender, sale or other disposition of the Leases. (collectively, the "**Rents**").

(d) Bankruptcy Claims. All of Borrower's claims and rights (the "**Bankruptcy Claims**") to the payment of damages arising from any rejection by a lessee of any Lease under the Bankruptcy Code.

(e) Lease Guaranties. All of Borrower's right, title and interest in and claims under any and all lease guaranties, letters of credit and any other credit support (individually, a "**Lease Guaranty**", collectively, the "**Lease Guaranties**") given by any guarantor in connection with any of the Leases or leasing commissions (individually, a "**Lease Guarantor**", collectively, the "**Lease Guarantors**") to Borrower.

(f) Proceeds. All proceeds from the sale or other disposition of the Leases, the Rents, the Lease Guaranties and the Bankruptcy Claims.

(g) Other. All rights, powers, privileges, options and other benefits of Borrower as lessor under the Leases and beneficiary under the Lease Guaranties, including without limitation the immediate and continuing right to make claim for, receive and collect all Rents payable or receivable under the Leases and all sums payable under the Lease Guaranties or pursuant thereto (and to apply the same to the payment of the Debt), and to do all other things which Borrower or any lessor is or may become entitled to do under the Leases or the Lease Guaranties.

(h) Entry. The right, at Lender's option, upon revocation of the license granted herein, to enter upon the Property in person, by agent or by court-appointed receiver, to collect the Rents.

(i) Power of Attorney. Borrower's irrevocable power of attorney, coupled with an interest, to take any and all of the actions set forth in Section 3.1 of this Assignment and any or all other actions designated by Lender for the proper management and preservation of the Property.

(j) Other Rights and Agreements. Any and all other rights of Borrower in and to the items set forth in subsections (a) through (i) above, and all amendments, modifications, replacements, renewals and substitutions thereof.

ARTICLE 2 - TERMS OF ASSIGNMENT

Section 2.1 **Present Assignment And License Back**. It is intended by Borrower that this Assignment constitute a present, absolute assignment of the Leases, Rents, Lease Guaranties and Bankruptcy Claims, and not an assignment for additional security only. Nevertheless, subject to the terms of this Section 2.1 and the Cash Management Agreement, Lender grants to Borrower a revocable license to collect, receive, use and enjoy the Rents and other sums due under the Lease Guaranties and Borrower shall hold such Rents and all sums received pursuant to any Lease Guaranty, or a portion thereof sufficient to discharge all current sums due on the Debt, in trust for the benefit of Lender for use in the payment of such sums.

Section 2.2 **Notice To Lessees**. Borrower hereby authorizes and directs the lessees named in the Leases or any other future lessees or occupants of the Property and all Lease Guarantors to pay over to Lender or to such other party as Lender directs all Rents and all sums due under any Lease Guaranties upon receipt from Lender of written notice to the effect that Lender is then the holder of this Assignment and that an Event of Default (as defined in the Loan Agreement) exists, and to continue so to do until otherwise notified by Lender.

Section 2.3 **Incorporation By Reference**. All representations, warranties, covenants, conditions and agreements contained in the Loan Agreement and the other Loan Documents as same may be modified, renewed, substituted or extended are hereby made a part of this Assignment to the same extent and with the same force as if fully set forth herein.

ARTICLE 3- REMEDIES

Section 3.1 **Remedies of Lender**. Upon or at any time after the occurrence of an Event of Default, the license granted to Borrower in Section 2.1 of this Assignment shall automatically be revoked, and Lender shall immediately be entitled to possession of all Rents and sums due under any Lease Guaranties, whether or not Lender enters upon or takes control of the Property. In addition, Lender may, at its option, without waiving such Event of Default, without regard to the adequacy of the security for the Debt, either in person or by agent, nominee or attorney, with or without bringing any action or proceeding, or by a receiver appointed by a court, dispossess Borrower and its agents and servants from the Property, without liability for trespass, damages or otherwise and exclude Borrower and its agents or servants wholly therefrom, and take possession of the Property and all books, records and accounts relating thereto and have, hold, manage, lease and operate the Property on such terms and for such period of time as Lender may deem proper and either with or without taking possession of the Property in its own name, demand, sue for or otherwise collect and receive all Rents and sums due under all Lease Guaranties, including those past due and unpaid with full power to make from time to time all alterations, renovations, repairs or replacements thereto or thereof as Lender may deem proper and may apply the Rents and sums received pursuant to any Lease Guaranties to the payment of the following in such order and proportion as Lender in its sole discretion may determine, any law, custom or use to the contrary notwithstanding: (a) all expenses of managing and securing the Property, including, without being limited thereto, the salaries, fees and wages of a managing agent and such other employees or agents as Lender may deem necessary or desirable and all expenses of operating and maintaining the Property, including, without being limited thereto, all taxes, charges, claims, assessments, water charges, sewer rents and any other liens, and premiums for all insurance which Lender may deem necessary or desirable, and the cost of all alterations, renovations, repairs or replacements, and all expenses incident to taking and retaining possession of the Property; and (b) the Debt, together with all costs and reasonable attorneys' fees. In addition, upon the occurrence of an Event of Default, Lender, at its option, may (i) complete any construction on the Property in such manner and form as Lender deems advisable, (ii) exercise all rights and powers of Borrower, including, without limitation, the right to negotiate, execute, cancel, enforce or modify any Leases, obtain and evict tenants, and demand, sue for, collect and receive all Rents from the Property and all sums due under any Lease Guaranties, (iii) require Borrower to pay monthly in advance to Lender, or any receiver appointed to collect the Rents, the fair and reasonable rental value for the use and occupancy of such part of the Property as may be in possession of Borrower or (iv) require Borrower to vacate and surrender possession of the Property to Lender or to such receiver and, in default thereof, Borrower may be evicted by summary proceedings or otherwise.

Section 3.2 **Other Remedies**. Nothing contained in this Assignment and no act done or omitted by Lender pursuant to the power and rights granted to Lender hereunder shall be deemed to be a waiver by Lender of its rights and remedies under the Loan Agreement, the Note, or the other Loan Documents and this Assignment is made and accepted without prejudice to any of the rights and remedies possessed by Lender under the terms thereof. The right of Lender to collect the Debt and to enforce any other security therefor held by it may be exercised by Lender either prior to, simultaneously with, or subsequent to any action taken by it hereunder. Borrower hereby absolutely, unconditionally and irrevocably waives any and all rights to assert any setoff, counterclaim or crossclaim of any nature whatsoever with respect to the obligations of Borrower under this Assignment, the Loan Agreement, the Note, the other Loan Documents or otherwise with respect to the Loan in any action or proceeding brought by Lender to collect same, or any portion thereof, or to enforce and realize upon the lien and security interest created by this Assignment, the Loan Agreement, the Note, or any of the other Loan Documents (provided, however, that the foregoing shall not be deemed a waiver of Borrower's right to assert any compulsory counterclaim if such counterclaim is compelled under local law or rule of procedure, nor shall the foregoing be deemed a waiver of Borrower's right to assert any claim which

would constitute a defense, setoff, counterclaim or crossclaim of any nature whatsoever against Lender in any separate action or proceeding).

Section 3.3 **Other Security**. Lender may take or release other security for the payment of the Debt, may release any party primarily or secondarily liable therefor and may apply any other security held by it to the reduction or satisfaction of the Debt without prejudice to any of its rights under this Assignment.

Section 3.4 **Non-Waiver**. The exercise by Lender of the option granted it in Section 3.1 of this Assignment and the collection of the Rents and sums due under the Lease Guaranties and the application thereof as herein provided shall not be considered a waiver of any default by Borrower under the Note, the Loan Agreement, the Leases, this Assignment or the other Loan Documents. The failure of Lender to insist upon strict performance of any term hereof shall not be deemed to be a waiver of any term of this Assignment. Borrower shall not be relieved of Borrower's obligations hereunder by reason of (a) the failure of Lender to comply with any request of Borrower or any other party to take any action to enforce any of the provisions hereof or of the Loan Agreement, the Note or the other Loan Documents, (b) the release regardless of consideration, of the whole or any part of the Property, or (c) any agreement or stipulation by Lender extending the time of payment or otherwise modifying or supplementing the terms of this Assignment, the Loan Agreement, the Note, or the other Loan Documents. Lender may resort for the payment of the Debt to any other security held by Lender in such order and manner as Lender, in its discretion, may elect. Lender may take any action to recover the Debt, or any portion thereof, or to enforce any covenant hereof without prejudice to the right of Lender thereafter to enforce its rights under this Assignment. The rights of Lender under this Assignment shall be separate, distinct and cumulative and none shall be given effect to the exclusion of the others. No act of Lender shall be construed as an election to proceed under any one provision herein to the exclusion of any other provision.

Section 3.5 **Bankruptcy**. (a) Upon or at any time after the occurrence of an Event of Default, Lender shall have the right to proceed in its own name or in the name of Borrower in respect of any claim, suit, action or proceeding relating to the rejection of any Lease, including, without limitation, the right to file and prosecute, to the exclusion of Borrower, any proofs of claim, complaints, motions, applications, notices and other documents, in any case in respect of the lessee under such Lease under the Bankruptcy Code.

(b) If there shall be filed by or against Borrower a petition under the Bankruptcy Code, and Borrower, as lessor under any Lease, shall determine to reject such Lease pursuant to Section 365(a) of the Bankruptcy Code, then Borrower shall give Lender not less than ten (10) days' prior notice of the date on which Borrower shall apply to the bankruptcy court for authority to reject the Lease. Lender shall have the right, but not the obligation, to serve upon Borrower within such ten-day period a notice stating that (i) Lender demands that Borrower assume and assign the Lease to Lender pursuant to Section 365 of the Bankruptcy Code and (ii) Lender covenants to cure or provide adequate assurance of future performance under the Lease. If Lender serves upon Borrower the notice described in the preceding sentence, Borrower shall not seek to reject the Lease and shall comply with the demand provided for in clause (i) of the preceding sentence within thirty (30) days after the notice shall have been given, subject to the performance by Lender of the covenant provided for in clause (ii) of the preceding sentence.

ARTICLE 4 - NO LIABILITY, FURTHER ASSURANCES

Section 4.1 **No Liability of Lender**. This Assignment shall not be construed to bind Lender to the performance of any of the covenants, conditions or provisions contained in any Lease or Lease Guaranty or otherwise impose any obligation upon Lender. Lender shall not be liable for any loss sustained by Borrower resulting from Lender's failure to let the Property after an Event of Default or from any other act or omission of Lender in managing the Property after an Event of Default unless such loss is caused by the willful misconduct and bad faith of Lender. Lender shall not be obligated to perform or discharge any obligation, duty or liability under the Leases or any Lease Guaranties or under or by reason of this Assignment and Borrower shall, and hereby agrees to, indemnify Lender for, and to hold Lender harmless from, any and all liability, loss or damage which may or might be incurred under the Leases, any Lease Guaranties or under or by reason of this Assignment and from any and all claims and demands whatsoever, including the defense of any such claims or demands which may be asserted against Lender by reason of any alleged obligations and undertakings on its part to perform or discharge any of the terms, covenants or agreements contained in the Leases or any Lease Guaranties. Should Lender incur any such liability, the amount thereof, including costs, expenses and reasonable attorneys' fees, shall be secured by this Assignment and the other Loan Documents and Borrower shall reimburse Lender therefor immediately upon demand and upon the failure of Borrower so to do Lender may, at its option, declare all sums secured by this Assignment and the other Loan Documents immediately due and payable. This Assignment shall not operate to place any obligation or liability for the control, care, management or repair of the Property upon Lender, nor for the carrying out of any of the terms and conditions of the Leases or any Lease Guaranties; nor shall it operate to make Lender responsible or liable for any waste committed on the Property by the tenants or any other parties, or for any dangerous or defective condition of the Property including, without limitation, the presence of any Hazardous Substances (as defined in the Environmental Indemnity), or for any negligence in the management, upkeep, repair or control of the Property resulting in loss or injury or death to any tenant, licensee, employee or stranger.

Section 4.2 **No Mortgagee in Possession**. Nothing herein contained shall be construed as constituting Lender a "mortgagee in possession" in the absence of the taking of actual possession of the Property by Lender. In the exercise of the powers herein granted Lender, no liability shall be asserted or enforced against Lender, all such liability being expressly waived and released by Borrower.

Section 4.3 **Further Assurances**. Borrower will, at the cost of Borrower, and without expense to Lender, do, execute, acknowledge and deliver all further acts, conveyances, assignments, notices of assignments, transfers and assurances as Lender shall, from time to time, require for the better assuring, conveying, assigning, transferring and confirming unto Lender the property and rights hereby assigned or intended now or hereafter so to be, or which Borrower may be or may hereafter become bound to convey or assign to Lender, or for carrying out the intention or facilitating the performance of the terms of this Assignment or for filing, registering or recording this Assignment and, on demand, will execute and deliver and hereby authorizes Lender to execute in the name of Borrower to the extent Lender may lawfully do so, one or more financing statements, chattel mortgages or comparable security instruments, to evidence more effectively the lien and security interest hereof in and upon the Leases.

ARTICLE 5 - MISCELLANEOUS PROVISIONS

Section 5.1 **Conflict of Terms**. In case of any conflict between the terms of this Assignment and the terms of the Loan Agreement, the terms of the Loan Agreement shall prevail.

Section 5.2 **No Oral Change**. This Assignment and any provisions hereof may not be modified, amended, waived, extended, changed, discharged or terminated orally, or by any act or failure to act on the part of Borrower or Lender, but only by an agreement in writing signed by Lender and by the party against whom the enforcement of any modification, amendment, waiver, extension, change, discharge or termination is sought (as applicable).

Section 5.3 **General Definitions**. All capitalized terms not defined herein shall have the respective meanings set forth in the Loan Agreement. Unless the context clearly indicates a contrary intent or unless otherwise specifically provided herein, words used in this Assignment may be used interchangeably in singular or plural form and the word "Borrower" shall mean "each Borrower and any subsequent owner or owners of the Property or any part thereof or interest therein," the word "Lender" shall mean "Lender and any subsequent holder of the Note, the word "Note" shall mean "the Note and any other evidence of indebtedness secured by the Loan Agreement, the word "Property" shall include any portion of the Property and any interest therein, the phrases "attorneys' fees", "legal fees" and "counsel fees" shall include any and all attorney's, paralegal and law clerk fees and disbursements, including, but not limited to, fees and disbursements at the pre-trial, trial and appellate levels incurred or paid by Lender in protecting its interest in the Property, the Leases and the Rents and enforcing its rights hereunder; whenever the context may require, any pronouns used herein shall include the corresponding masculine, feminine or neuter forms, and the singular form of nouns and pronouns shall include the plural and vice versa.

Section 5.4 **Inapplicable Provisions.** If any term, covenant or condition of this Assignment is held to be invalid, illegal or unenforceable in any respect, this Assignment shall be construed without such provision.

Section 5.5 **Governing Law**. This Assignment shall be governed in accordance with the terms and provisions of Section 10.3 of the Loan Agreement.

Section 5.6 **Termination of Assignment**. Upon payment in full of the Debt, this Assignment shall become and be void and of no effect.

Section 5.7 **Notices**. All notices or other written communications hereunder shall be delivered in accordance with Section 10.6 of the Loan Agreement.

Section 5.8 **WAIVER OF TRIAL BY JURY**. **BORROWER HEREBY WAIVES, TO THE FULLEST EXTENT PERMITTED BY LAW, THE RIGHT TO TRIAL BY JURY IN ANY ACTION, PROCEEDING OR COUNTERCLAIM, WHETHER IN CONTRACT, TORT OR OTHERWISE, RELATING DIRECTLY OR INDIRECTLY TO THIS ASSIGNMENT, THE NOTE, OR THE OTHER LOAN DOCUMENTS OR ANY ACTS OR OMISSIONS OF LENDER, ITS OFFICERS, EMPLOYEES, DIRECTORS OR AGENTS IN CONNECTION THEREWITH.**

Section 5.9 **Exculpation**. The provisions of Section 9.4 of the Loan Agreement are hereby incorporated by reference into this Assignment to the same extent and with the same force as if fully set forth herein.

Section 5.10 **Successors and Assigns; Joint and Several Liability**. This Assignment shall be binding upon and inure to the benefit of Borrower and Lender and their respective successors and assigns forever. Lender has the right to sell, transfer, assign or otherwise dispose of its rights, obligations and/or interest in the Loan and the Loan Documents, including, without limitation, this Assignment,

pursuant to Section 9.1 of the Loan Agreement. The obligations and liabilities of Borrower hereunder shall be joint and several.

Section 5.11 **Headings, Etc.** The headings and captions of various paragraphs of this Assignment are for convenience of reference only and are not to be construed as defining or limiting, in any way, the scope or intent of the provisions hereof.

ARTICLE 6 - STATE-SPECIFIC PROVISIONS

Section 6.1 In the event of any inconsistencies between the other terms and conditions of this Assignment and this Article 6, the terms and conditions of Article 6 shall control and be binding.

Section 6.2 **Recording Statute**. The provisions set forth in this Assignment are not intended to evidence an additional recordable event, as may be proscribed by Act 459 of the Public Acts of Michigan of 1996, but rather are included in this Assignment for purposes of complying with applicable law. Notwithstanding the title of this document to the contrary, it is acknowledged by Borrower that this document grants to Lender an assignment of leases and rents as provided herein, Borrower recognizing and acknowledging that under the recording statute of the State of Michigan MCLA §565.201(3), a document to be recorded with a Register of Deeds in the State of Michigan shall not purport to evidence more than one recordable event. All references in any other Loan Document to either an "Assignment of Leases and Rents" or an "Assignment of Leases" shall be deemed a reference to this Assignment.

Section 6.3 **Lender's Rights**. Lender shall also be entitled to all the rights and remedies conferred by Act No. 210 of the Michigan Public Acts of 1953, as amended by Act No. 151 of the Michigan Public Acts of 1966 (MCLA §554.231, *et seq.*), and Act No. 228 of the Public Acts of Michigan of 1925 (MCLA §554.211, *et seq.*), and Act No. 66 of the Michigan Public Acts of 1956 (MCLA §565.81, *et seq.*).

Section 6.4 **Notice of Absolute Assignment**. BORROWER ACKNOWLEDGES AND AGREES THAT THE ASSIGNMENT OF RENTS TO LENDER UNDER THIS ASSIGNMENT IS AND IS INTENDED TO BE AN ABSOLUTE PRESENT ASSIGNMENT OF RENTS PURSUANT TO AND TO THE EXTENT PERMITTED BY MCLA §554.231 *ET SEQ.*, MCLA §565.81 *ET SEQ.*, AND TO THE EXTENT APPLICABLE MCLA §554.211 *ET SEQ.* As such, upon the occurrence and during the continuance of a Cash Sweep Period and without any action by Lender, Borrower shall have no further right to collect or otherwise receive such Rents, which will be the absolute and sole property of Lender pursuant to those statutes.

[NO FURTHER TEXT ON THIS PAGE]

IN WITNESS WHEREOF, Borrower has executed this instrument the day and year first above written.

BUTCHKISS VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Sandi Butchkiss
Title: Sole Member

JB VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Jean Becker
Title: Sole Member

LT VAN BUREN, LLC,
a Delaware limited liability company

By: LDB Holding Company, LLC,
a Wisconsin limited liability company,
its manager

By: _____
Name: Leah B. Toppel
Title: Manager

[SIGNATURES CONTINUE ON FOLLOWING PAGE]

IN WITNESS WHEREOF, Borrower has executed this instrument the day and year first above written.

BUTCHKISS VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Sandi Butchkiss
Title: Sole Member

JB VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Jean Becker
Title: Sole Member

LT VAN BUREN, LLC,
a Delaware limited liability company

By: LDB Holding Company, LLC,
a Wisconsin limited liability company,
its manager

By: _____
Name: Leah B. Toppel
Title: Manager

[SIGNATURES CONTINUE ON FOLLOWING PAGE]

IN WITNESS WHEREOF, Borrower has executed this instrument the day and year first above written.

BUTCHKISS VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Sandi Butchkiss
Title: Sole Member

JB VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Jean Becker
Title: Sole Member

LT VAN BUREN, LLC,
a Delaware limited liability company

By: LDB Holding Company, LLC,
a Wisconsin limited liability company,
its ~~manager~~ sole member

By: _____
Name: Leah B. Toppel
Title: Manager

[SIGNATURES CONTINUE ON FOLLOWING PAGE]

SB VAN BUREN, LLC,
a Delaware limited liability company

By: Sidney L Becker
Name: Sidney Becker
Title: Sole Member

VAN BUREN VENTURE, LLC,
a Delaware limited liability company

By: Bradley Associates, L.L.C.,
an Illinois limited liability company,
its manager

By: _____
Name: Sherwin Jarol
Title: Manager

SB VAN BUREN, LLC,
a Delaware limited liability company

By: _____
Name: Sidney Becker
Title: Sole Member

VAN BUREN VENTURE, LLC,
a Delaware limited liability company

By: Bradley Associates, L.L.C.,
an Illinois limited liability company,
its manager

By: _____
Name: Sherwin Jarol
Title: Manager

State of IL)
)ss
County of COOK)

The foregoing instrument was acknowledged before me this 13 day of September, 2012, by Sandi Butchkiss, an individual, who is the sole member of Butchkiss Van Buren, LLC, a Delaware limited liability company.

_____, Notary Public

COOK County, IL

My Commission Expires: 4/2/16

OFFICIAL SEAL
JEANNE EDWARDS
NOTARY PUBLIC - STATE OF ILLINOIS
MY COMMISSION EXPIRES:04/02/16

State of ILLINOIS)
)ss
County of Cook)

The foregoing instrument was acknowledged before me this 17th day of September, 2012, by Jean Becker, an individual, who is the sole member of JB Van Buren, LLC, a Delaware limited liability company.

Janet M. Engelen, Notary Public

Cook County, IL

My Commission Expires: 4/29/13

OFFICIAL SEAL
JANET M. ENGELEN
Notary Public - State of Illinois
My Commission Expires Apr 29, 2013

State of IL)
)ss
County of Cook)

The foregoing instrument was acknowledged before me this 17 day of September, 2012, by Leah B. Toppel, an individual, who is the manager of LDB Holding Company, LLC, a Wisconsin limited liability company, which is the ~~manager~~ sole member of LT Van Buren, LLC, a Delaware limited liability company.

R E Miller, Notary Public

Cook County, IL

My Commission Expires: 11-19-2015

OFFICIAL SEAL
R E MILLER
Notary Public - State of Illinois
My Commission Expires Nov 19, 2015

State of ILLINOIS)
)ss
County of Cook)

The foregoing instrument was acknowledged before me this 17th day of September, 2012, by Sidney Becker, an individual, who is the sole member of SB Van Buren, LLC, a Delaware limited liability company.

Janet M. Engelen, Notary Public

Cook County, IL

My Commission Expires: 4/29/13

OFFICIAL SEAL
JANET M. ENGELEN
Notary Public - State of Illinois
My Commission Expires Apr 29, 2013

State of ILLINOIS)
)ss
County of Cook)

The foregoing instrument was acknowledged before me this 18th day of September, 2012, by Sherwin Jarol, an individual, who is the manager of Bradley Associates, L.L.C., an Illinois limited liability company, which is the manager of Van Buren Venture, LLC, a Delaware limited liability company.

Janet M. Engelen, Notary Public

Cook County, IL

My Commission Expires: 4/29/13

OFFICIAL SEAL
JANET M. ENGELEN
Notary Public - State of Illinois
My Commission Expires Apr 29, 2013

PREPARED BY AND UPON
RECORDATION RETURN TO:

Winston & Strawn LLP
200 Park Avenue
New York, New York 10166
Attention: Corey A. Tessler, Esq.

EXHIBIT A

(Legal Description of Property)

The land referred to in this commitment is described as follows: Township of Van Buren, County of Wayne, State of Michigan

Parcel A (Northern Tract of land):
A parcel of land located in the Southwest 1/4 of Section 12, Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan, more particularly described as follows: Commencing at the Southwest 1/4 of Section 12, Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan; thence along the West line of said Section 12 and the centerline of Haggerty Road (120 feet wide), North 02 degrees 23 minutes 55 seconds West 640.19 feet to the North Right-of-Way line of Old Tyler Road (variable width); thence along said North Right-of-Way line North 89 degrees 08 minutes 49 seconds East 942.89 feet to the point of beginning; thence North 00 degrees 11 minutes 02 seconds East 318.96 feet; thence North 89 degrees 09 minutes 29 seconds East 551.39 feet to a point on the Westerly Right-of-Way of I-275, said point also being a point on a non-tangential curve to the left; thence along a non-tangential curve to the left, having a length of 265.54 feet, a Radius of 4039.72 feet, an interior angle of 3 degrees 45 minutes 58 seconds, Chord bearing South 19 degrees 19 minutes 34 seconds East 265.49 feet; thence South 89 degrees 08 minutes 49 seconds West 121.61 feet; thence South 00 degrees 51 minutes 11 seconds East 40.00 feet; thence South 89 degrees 08 minutes 49 seconds West 75.90 feet; thence South 01 degrees 52 minutes 46 seconds East 26.99 feet; thence South 89 degrees 08 minutes 49 seconds West 282.00 feet; thence along a non-tangential curve to the left, having a length of 118.23 feet, a Radius of 75.00 feet, an interior angle of 90 degrees 19 minutes 04 seconds, Chord bearing North 80 degrees 59 minutes 50 seconds West 106.36 feet; thence along a reverse curve to the right, having a length of 61.00 feet, a Radius of 99.00 feet, an interior angle of 35 degrees 18 minutes 11 seconds, Chord bearing South 71 degrees 29 minutes 43 seconds West 60.04 feet; thence South 89 degrees 08 minutes 49 seconds West 0.25 feet to the point of beginning.

Re: 9059 Samuel Barton Drive

Tax Item No. 83-047-99-0002-701

Parcel B (Southern Tract of land):
A parcel of land located in the Southwest 1/4 of Section 12 Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan, more particularly described as follows: Commencing at the Southwest 1/4 of Section 12, Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan; thence along the West line of said Section 12 and the centerline of Haggerty Road (120 feet wide), North 02 degrees 23 minutes 55 seconds West 574.17 feet to the South Right-of-Way line of Old Tyler Road (variable width); thence along said South Right-of-Way line North 89 degrees 08 minutes 49 seconds East 704.61 (surveyed as 704.60) feet to the point of beginning; thence along said Right-of-Way line North 89 degrees 08 minutes 49 seconds East 198.97 feet; thence along a curve to the right, having a length of 97.08

feet, a Radius of 135.00 feet, an interior angle of 41 degrees 12 minutes 14 seconds, Chord bearing South 70 degrees 15 minutes 04 seconds East 95.01 feet; thence along a reverse curve to the left, having a length of 217.54 feet, a Radius of 75.00 feet, an interior angle of 166 degrees 11 minutes 22 seconds, Chord bearing North 47 degrees 15 minutes 23 seconds East 148.91 feet; thence North 89 degrees 08 minutes 49 seconds East 282.00 feet; thence North 01 degrees 52 minutes 46 seconds West 26.99 feet; thence North 89 degrees 08 minutes 49 seconds East 75.90 feet; thence North 00 degrees 51 minutes 11 seconds West 40.00 feet; thence North 89 degrees 08 minutes 49 seconds East 121.61 feet to a point on the Westerly Right-of-Way line of I-275, said point also being a point on a non-tangential curve to the left; thence along a non-tangential curve to the left, having a length of 346.10 feet, a Radius of 4039.72 feet, an interior angle of 4 degrees 54 minutes 32 seconds, Chord bearing South 23 degrees 39 minutes 49 seconds East 346.00 feet; thence South 66 degrees 15 minutes 33 seconds West 692.41 feet; thence South 74 degrees 32 minutes 14 seconds West 294.02 feet; thence South 87 degrees 18 minutes 53 seconds West 77.58 feet; thence North 02 degrees 08 minutes 34 seconds West 532.02 feet to the point of beginning.

Re: 40000 Ricardo Drive

Tax Item No. 83-047-99-0007-702

Combine Legal Description:
A parcel of land located in the Southwest 1/4 of Section 12, Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan, more particularly described as follows: Commencing at the Southwest 1/4 of Section 12, Town 3 South, Range 8 East, Van Buren Township, Wayne County, Michigan; thence along the West line of said Section 12 and the centerline of Haggerty Road (120 feet wide), North 02 degrees 23 minutes 55 seconds West 574.17 feet to the South right of way line of Old Tyler Road (variable width); thence along said South right of way line North 89 degrees 08 minutes 49 seconds East 704.60 feet for the point of beginning; thence along said right of way line North 89 degrees 08 minutes 49 seconds East 198.97 feet; thence along a curve to the right, having a length of 97.08 feet, a radius of 135.00 feet, an interior angle of 41 degrees 12 minutes 14 seconds, chord bearing South 70 degrees 15 minutes 04 seconds East 95.01 feet; thence along a reverse curve to the left, having a length of 335.77 feet, a radius of 75.00 feet, an interior angle of 256 degrees 30 minutes 26 seconds, chord bearing North 02 degrees 05 minutes 50 seconds East 117.79 feet; thence along a reverse curve to the right, having a length of 61.00 feet a radius of 99.00 feet, an interior angle of 35 degrees 18 minutes 11 seconds, chord bearing South 71 degrees 29 minutes 43 seconds West 60.04 feet; thence South 89 degrees 08 minutes 49 seconds West 0.25 feet; thence North 00 degrees 11 minutes 02 seconds East 318.96 feet; thence North 89 degrees 09 minutes 29 seconds East 551.39 feet to a point on the Westerly right of way line of I-275, said point also being a point on a non-tangential curve to the left; thence along the Westerly right of way line of I-275 and a non-tangential curve to the left, having a length of 611.64 feet, a radius of 4039.72 feet, an interior angle of 8 degrees 40 minutes 30 seconds, chord bearing South 21 degrees 46 minutes 50 seconds East 611.06 feet; thence South 66 degrees 15 minutes 33 seconds West 692.41 feet; thence South 74 degrees 32 minutes 14 seconds West 294.02 feet; thence South 87 degrees 18 minutes 53 seconds West 77.58 feet; thence North 02 degrees 08 minutes 34 seconds West 532.02 feet to the point of beginning.